

26STCV02901 26STCV02901

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-30

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Case Number: 26STCV02901 Hearing Date: July 30, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 30, 2026 TRIAL DATE:

Not Set

CASE: Damon Jones v. Saint Cloud, Inc.

CASE NO.: 26STCV02901

REQUEST

FOR DEFAULT JUDGMENT

MOVING PARTY: Plaintiff Damon Jones

RESPONDING PARTY: None

CASE

HISTORY:

1/28/2026:

Complaint filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an action for breach of contract and fraud. Plaintiff alleges that Defendant Walker, who is the CEO of Defendant Saint Cloud, approached Plaintiff for financial help with the company. In oral conversations, emails, and text messages, Walker represented to Plaintiff that Saint Cloud's business was strong, well-positioned to immediately scale its business, and had large orders from customers, but needed a cash infusion to be able to fulfill those orders. In reliance on these representations, Plaintiff obtained a loan from a third-party lender and entered into a Secured Promissory Note (the "Note") with Saint Cloud, dated June 11, 2024.

The Note obligated Defendants to, among other things, make monthly payments of \$1,884.76 commencing on July 9, 2024; issue equity in Saint Cloud to Plaintiff on or before July 15, 2024; and to deliver to Plaintiff "all financial and other information reasonably requested by [Plaintiff] including, without limitation, monthly income statements and balance sheets in a form acceptable to [Plaintiff] in [Plaintiff's] sole discretion." In reliance on the Note and the representations made by Defendants, Plaintiff wired \$ 117,700 to Saint Cloud's bank account.

Plaintiff alleges that Defendants proceeded to breach numerous provisions of the Note and contradict their representations to Plaintiff. Although Defendants were supposed to have set aside funds sufficient to cover the first six payments, Defendants began expressing doubt about their ability to make even the second payment, missed the October 2024 payment, and by November 2024 were claiming to have "nothing" with which to pay Plaintiff. Defendants continued to miss payments through February 2025, again in June and July 2025, and made only partial payments for August and September 2025. Defendants have also missed every payment from October 2025 through and including January 2026.

As of January 11, 2026, Defendants owed the unpaid principal of \$ 118,914.14,

and a total balance due of \$ 145,354.85.

Defendants never issued Plaintiff the promised equity in Saint Cloud, and refused to provide financial records requested by Plaintiff to show, among other things, how the loan proceeds were used. Nor did Defendants disclose to Plaintiff that they were planning to file a bankruptcy petition until the day before the filing on May 21, 2025, which

was subsequently dismissed.

Plaintiff requests default
judgment against Defendants Saint Cloud, Inc. and Ray Walker.

TENTATIVE RULING:

Plaintiff's request for default
judgment is DENIED without prejudice.

DISCUSSION:

Plaintiff
seeks \$145,354.85 in demand of the complaint, \$6,017.38 in interest, \$3,403.72
in attorney fees, and \$1,171.89 in costs.

The request
is DENIED without prejudice for the following deficiencies:

Plaintiff's declaration is insufficient to show the amount currently owed by
Defendants. Plaintiff failed to declare how the amounts were
calculated, and failed to show whether Defendant's payments were credited to
the amount owed. For example, Plaintiff states the total missed payments are in
the amount of \$22,825.71, but does not explain how he arrived at this figure.
Further, Plaintiff should explain how he arrived at \$118,914.14 as to the
principal amount as the contract states it is \$117,700.

The interest calculation
declaration is missing.

The attorney fees sought is
slightly more than allowed in the fee schedule in Local Rule 3.214.

IT IS SO ORDERED.

Dated: July 30, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.